

2. ARANA v. ALONZO, ET AL., 23CV0602**Motion for Protective Order**

On February 13, 2026, pursuant to Code of Civil Procedure section 2030.090, defendant Paul Windt (“defendant”) filed the instant motion for protective order related to plaintiff Christopher Arana’s (“plaintiff”) Special Interrogatories (Set One) propounded upon defendant. Defense counsel declares they met and conferred with plaintiff under Code of Civil Procedure section 2016.040. (Ou Decl., ¶¶ 3–6 & Exs. C–F.)

Defendant’s notice of motion states that, in the event plaintiff opposes the motion without substantial justification, defendant will seek a monetary sanction.

On May 4, 2026, plaintiff filed a timely opposition, wherein plaintiff requests a monetary sanction against defendant in an unspecified amount.

On May 8, 2026, defendant filed a timely reply and requested a monetary sanction of \$8,256.95. (Reply at 6:22–7:6.)

1. Preliminary Matter

Plaintiff argues the motion should be denied outright because defendant’s meet and confer efforts were insufficient under Code of Civil Procedure section 2016.040. (Opp. at 3:10–23.) That section provides: “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

Plaintiff claims defendant is objecting to 75 interrogatories but only met and conferred on 18 of them (four interrogatories cited in defendant’s original meet and confer letter dated January 21, 2026; and 14 additional interrogatories cited in defendant’s follow-up letter dated January 28, 2026). The court disagrees with plaintiff. Having read and considered the meet and confer letters, the court finds that defendant made a reasonable and good faith attempt to informally resolve the issues presented by

the instant motion. Defendant raised specific issues and legal authority, and cited specific interrogatories to illustrate his claims.

2. Background

This case arises from a real estate transaction of a residential property. Defendant acted as the dual real estate agent for both plaintiff (the buyer) and defendant John Alonzo (the seller). After the close of escrow in April 2022, plaintiff allegedly discovered issues with the subject property, including prior roof leaks, mold in the attic, mold in the interior and exterior walls, a defective chimney, and defective plumbing. (Compl., ¶ 23.)

Plaintiff's complaint alleges the following five causes of action against defendant: (1) concealment; (2) intentional misrepresentation; (3) negligent misrepresentation; (4) violation of Civil Code section 1102, et seq. ("Disclosures upon Transfer of Residential Property"); and (5) negligence.

Plaintiff's complaint also includes causes of action against other defendants for breach of contract and fraud.

On January 16, 2026, plaintiff propounded Special Interrogatories (Set One) on defendant, which included 135 interrogatories in the set. (Ou Decl., filed Feb. 13, 2026, Ex. A.) Attached to the discovery request was a declaration executed by plaintiff's counsel for additional discovery pursuant to Code of Civil Procedure section 2030.040. (Ou Decl., filed Feb. 13, 2026, Ex. A.) Paragraph 10 of counsel's declaration states the number of interrogatories "is warranted ... because of the complexity and quantity of the existing potential issues concerning the identity of witnesses, the identity of employees, managers, real estate brokers, real estate agents, subcontractors, renters, who worked for JOHN ALONZO or PAUL WINDT, whether defendants were aware of defects related to the subject property, WHETHER DEFENDANTS CONCEALED, WITHHELD OR DOWNPLAYED the existence of mold on the roof or water leaks from the roof, whether defendants informed plaintiff that they were aware of defects related to the subject property prior to the sale, why they took the property off the market,

whether defendants were informed by prior tenants that they were aware of defects related to the subject property, actual or constructive notice, inspection and liability issues as they relate to the subject property, issues regarding liability of other parties Whether [sic] there are videos or photos of the subject property.” (Ou Decl., filed Feb. 13, 2026, Ex. A.)

3. Legal Principles

“When interrogatories have been propounded, the responding party ... may promptly move for a protective order....” (Code Civ. Proc., § 2030.090, subd. (a).) “The court, for good cause shown, may make any order that justice requires to protect any party ... from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (*Id.*, subd. (b).) “In considering whether the discovery is unduly burdensome or expensive, the court takes into account ‘the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.’ ” (*People ex rel. Harris v. Sarpas*, 225 Cal.App.4th 1539, 1552 (citing Code Civ. Proc., § 2019.030, subd. (a)(2)).)

A protective order may include the direction that “the set of interrogatories, or particular interrogatories in the set, need not be answered,” “the response be made only on specified terms and conditions,” or “the method of discovery be an oral deposition instead of interrogatories to a party.” (*Id.*, subds. (b)(1), (4) & (5).)

“If the responding party seeks a protective order on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.” (Code Civ. Proc., § 2030.040, subd. (b).)

“The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order under this section, unless it finds that the one subject to the sanction acted with substantial

justification or that other circumstances make the imposition of the sanction unjust.”
(Code Civ. Proc., § 2030.090, subd. (d).)

4. Discussion

Defendant claims the number of special interrogatories is unwarranted. Therefore, the burden is on plaintiff to justify the number of interrogatories. (Code Civ. Proc., § 2030.040, subd. (b).) The court notes that plaintiff’s opposition largely argues that defendant has failed to produce any evidence that the number of interrogatories is unduly burdensome or oppressive. However, that is not the applicable standard in this motion for protective order. If defendant had *objected* to specific interrogatories on the grounds that they were unduly burdensome and oppressive, and plaintiff brought a motion to compel, then defendant would have such burden. (See *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417 [“The objection based upon burden must be sustained by evidence showing the quantum of work required, while to support an objection of oppression there must be some showing either of an intent to create an unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought.”].)¹ However, Code of Civil Procedure section 2030.040 expressly states, “[i]f the responding party seeks a *protective order* on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.” (Code Civ. Proc., § 2030.040, subd. (b) [emphasis added].)

Plaintiff argues that all of the 135 interrogatories “are intended to obtain information regarding the subject property regarding who knew about the mold, when

¹ Plaintiff’s opposition brief incorrectly claims that in *West Pico*, the Supreme Court “reversed the trial court granting of a protective order....” (Opp. at 4:8–13.) *West Pico* did not involve any protective order. Rather, it was a proceeding in mandate seeking to compel the respondent court to set aside its order sustaining objections to certain interrogatories propounded by the petitioner to the real party in interest, Pacific Finance Loans. (*West Pico, supra*, 56 Cal.2d at p. 413.)

they found out about the mold, who rented the premises and might have known about the mold, who talked to ALONZO and WINDT about the mold in order to identify witnesses for deposition or to obtain information to assist in preparation of depositions.” (Opp. at 4:21–25.) Plaintiff’s argument, however, misses the point. The issue is whether the number of interrogatories is justified, not merely whether the interrogatories seek to obtain discoverable information.

As defendant points out, several interrogatories are duplicative. For example, Special Interrogatory Number 40 asks: “Please describe all conversations PAUL WINDT had with BO FELDMAN during her tenancy at the subject premises regarding mold on the roof of the subject property.” Special Interrogatory Number 41 asks: “Please describe all conversations PAUL WINDT had with BO FELDMAN during her tenancy at the subject property regarding mold in any part of the subject property.” Special Interrogatory Numbers 41 and 42 ask the same questions, respectively, but for the time period after Bo Feldman’s tenancy.

Special Interrogatory Numbers 44 and 45 ask similar questions about conversations during Bo Feldman’s tenancy regarding water leaks or water damage. Special Interrogatory Numbers 46 and 47 ask the same questions, but for the time period after Bo Feldman’s tenancy.

Special Interrogatory Numbers 50 through 58 include the same lines of questioning, but with conversations defendant held with Blake Feldman.

The court also notes that plaintiff’s special interrogatories asking the responding party to “describe” or “detail” a conversation are vague and would appear to be better suited for questioning during an oral deposition. Special Interrogatory Numbers 39, 60, 61, 68, 76, 78, 79, and 135 call for a description of communications, as well.

Overall, the court finds that plaintiff has not met his burden of justifying the 135 special interrogatories propounded upon defendant. Therefore, the court grants defendant’s motion for a protective order. Defendant is required to provide a verified

response to the first 35 interrogatories only in plaintiff's Special Interrogatories (Set One).

4.1. Sanctions

Having read and considered the declaration of Adrienne Ou filed May 8, 2026, in support of defendant's reply, the court finds \$4,094.45 to be a reasonable sanction under the Civil Discovery Act against plaintiff's attorney, Rafael Crespo. Ms. Ou, the associate attorney working on the case, declares her hourly rate is \$225.00; and Dennis J. Kelly's (the partner working on the case) hourly rate is \$300.00. (Ou Decl., filed May 8, 2026, ¶ 2.) The court's sanction award accounts for 15 total hours spent by Ms. Ou (15 x \$225.00 = \$3,375.00) and two total hours spent by Mr. Kelly (2 x \$300.00 = \$600.00), plus the \$60.00 filing fee and \$59.45 electronic filing fee.

TENTATIVE RULING # 2: THE MOTION FOR A PROTECTIVE ORDER IS GRANTED.

DEFENDANT PAUL WINDT IS REQUIRED TO PROVIDE A VERIFIED RESPONSE TO THE FIRST 35 INTERROGATORIES ONLY IN PLAINTIFF CHRISTOPHER ARANA'S SPECIAL INTERROGATORIES (SET ONE). THE COURT IMPOSES A MONETARY SANCTION IN THE AMOUNT OF \$4,094.45 AGAINST PLAINTIFF'S ATTORNEY, RAFAEL CRESPO, AND IN FAVOR OF DEFENDANT PAUL WINDT, WHICH SHALL BE PAID TO DEFENDANT WINDT WITHIN 30 DAYS OF THE NOTICE OF ENTRY OF ORDER.

NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.